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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2220/49 – 2021 මාර්තු 25 වැනි බ්‍රහස්පතින්දා – 2021.03.25
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PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/02/2019/194.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON (1956 REVISED EDITION)

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. T. B. Gunaratne, No. 133/1A, Angurumulla, Indigasketiya, Baddegama.

of the one part

and

National Water Supply and Drainage Board, Galle Road, Ratmalana.

of the other part

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Sarath Chandrasiri Vithana, 13/1127, Dammodaya Mawatha, Mihidupura, Battaramulla to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
18th March, 2021.



**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Mr. T. B. Gunaratne, No. 133/1A, Angurumulla, Indigasketiya, Baddegama.

of the one part

and

National Water Supply and Drainage Board, Galle Road, Ratmalana.

of the other part

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mr. T. B. Gunaratne who had worked at the National Water Supply and Drainage Board had been caused injustice by not being promoted and non-payment of salaries during his service period and if so, to what relief he is entitled.

B. K. PRABATH CHANDRAKEERTHI,
 Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
 Colombo, on this 22nd day of February, 2021.

04 – 254

My No.: IR/COM/04/V/2015/154.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 26.12.2019 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka *Extraordinary* No. 2183/29 dated 08.07.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 13.12.2019.

Mrs. M. I. P. Kulathilake, “Upamali”, Beragala, Kegalle.

and

Employees Trust Fund Board, First Floor, Labour Secretariat, Colombo 05.

was referred to Mr. M. E. G. Samaraweera for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 26.12.2019.

NIMAL SIRIPALA DE SILVA,
 Minister of Labour.

Colombo.
 18th March, 2021.

04 – 255/1

My No.: IR/COM/04/V/2015/154.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mrs. M. I. P. Kulathilake, "Upamali", Beragala, Kegalle.

and

Employees Trust Fund Board, First Floor, Labour Secretariat, Colombo 05.

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Bandara Senarath, Attorney-at-Law, 331/3, New Hunupitiya Road, Dalugama, Kiribathgoda to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
18th March, 2021.

My No.: IR/COM/04/V/2015/154.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mrs. M. I. P. Kulathilake, "Upamali", Beragala, Kegalle.

and

Employees Trust Fund Board, First Floor, Labour Secretariat, Colombo 05.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mrs. M. I. P. Kulathilake, who was working in a Grade III Executive post of the Employees Trust Fund had been caused injustice by being placed in a Junior Management post which is a Grade lower than the post held earlier and thereby being deprived of salaries, annual salary increments, other Privileges and promotions and if such injustice had been caused, to what reliefs she is entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, on this 17th day of March, 2021.

My No.: IR/COM/02/2018/52-Sub.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 07.10.2019 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka *Extraordinary* No. 2144/61 dated 11.10.2019 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 30.09.2019.

01. Mr. P. A. M. Ratnapala, Agana Ulpatha, Dabawinna, Welimada.
02. Mr. H. M. Nimal Shantha, Tharindu Niwasa, Paragahamulla, Walmulla
03. Mr. R. D. Mahinda Rajapakse, Waralla Pathana, Dabawinna, Welimada.
04. Mr. Lasitha Senarath Wijesundara, No. 111, Medahinna, Kinigama, Bandarawela.
05. Mr. H. M. Chandana Kumara, Hansika Sevana, Kumbukgolla, Heavenwatta, Mahiyanganaya.
06. Mr. W. D. Krishan Wilpola, No. 334/1, Bambarawana, Dehiattakandiya.

of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05.

of the other part

was referred to Mr. M. E. G. Samaraweera for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 07.10.2019.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
18th March, 2021.

04 - 256/1

My No.: IR/COM/02/2018/52-Sub.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

01. Mr. P. A. M. Ratnapala, Agana Ulpatha, Dabawinna, Welimada.
02. Mr. H. M. Nimal Shantha, Paragahamulla, Walgolla, Badulla.
03. Mr. R. D. Mahinda Rajapakse, Waralla Pathana, Dabawinna, Welimada.
04. Mr. Lasitha Senarath Wijesundara, No. 111, Medahinna, Kinigama, Bandarawela.
05. Mr. H. M. Chandana Kumara, Hansika Sevana, Kumbukgolla, Heavenwatta, Mahiyanganaya.
06. Mr. W. D. Krishan Wilpola, No. 334/1, Bambarawana, Dehiattakandiya.

of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05.

of the other part

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Wijesuriya Arachchige Jayawickrama, Attorney-at-Law, 202/B/61, The Village, Kudamaduwa, Mattegama to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
18th March, 2021.

My No.: IR/COM/02/2018/52-Sub.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

01. Mr. P. A. M. Ratnapala, Agana Ulpatha, Dabawinna, Welimada.
02. Mr. H. M. Nimal Shantha, Paragahamulla, Walgolla, Badulla.
03. Mr. R. D. Mahinda Rajapakse, Waralla Pathana, Dabawinna, Welimada.
04. Mr. Lasitha Senarath Wijesundara, No. 111, Medahinna, Kinigama, Bandarawela.
05. Mr. H. M. Chandana Kumara, Hansika Sevana, Kumbukgolla, Heavenwatta, Mahiyanganaya.
06. Mr. W. D. Krishan Wilpola, No. 334/1, Bambarawana, Dehiattakandiya.

of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05.

of the other part

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether P. A. M. Ratnapala, H. M. Nimal Shantha, R. D. Mahinda Rajapakse, Lasitha Senarath Wijesundara, H. M. Chandana Kumara, W. D. Krishan Wilpola who have been employees of the Sri Lanka Transport Board for a long period of time on casual and contract basis have been caused injustice by not being confirmed in employment and if so, to what relief they are entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, on this 16th day of March, 2021.

04 - 256/2